

21NWCV00697 21NWCV00697

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THE JEN & MI LU FAMILY, LLC. v. JUMPSTART BODYFUEL, LLC, ET AL.

CASE NO.: 21NWCV00697

HEARING: Thursday, July 9, 2026, at 9:30 AM

I. Plaintiff's Motion for Leave to File a First Amended Complaint is GRANTED in part.

II. Defendant LINDA IKEDA's Motion for Judgment on the Pleadings is DENIED as MOOT.

III. Defendant LINDA IKEDA's Motion for Reconsideration is GRANTED.

Moving Party to give notice.

Background

On October 20, 2021, Plaintiff THE JEN & MI LU FAMILY, LLC ("Plaintiff") filed this breach of contract action against Defendants JUMPSTART BODYFUEL, LLC; LINDA IKEDA ("Defendant"); and DOES 1 through 50, inclusive.

On May 7, 2026, the Court GRANTED Plaintiff's Motions to Compel. The Court ordered provide verified responses and documents, without objection by no later than 60 calendar days from date of the Court's issuance of this Order and to for a deposition by no later than 60 calendar days from the date of the Court's issuance of this Order.

Legal Standard

A motion for reconsideration must be "based upon new or different facts, circumstances, or law." (CCP § 1008(a).) The moving party "shall state by affidavit... what new or different facts, circumstances, or law are claimed to be shown." (Ibid.) The moving party must also show diligence and explain why he or she could not have presented the new or different facts

or law earlier. (California Correctional Peace Officers Assn. v. Virga (2010) 181 Cal.App.4th 30, 46; Baldwin v. Home Sav. of America (1997) 59 Cal.App.4th 1192, 1200.)

A motion for reconsideration must be made “within 10 days after service upon the party of written notice of entry of the order.” (CCP § 1008(a).)

The Court grants Defendant relief for the following reasons:

First, on May 7, 2026, Edward Villalobos withdrew as Defendant's Counsel because there was a breakdown in communication. Counsel's withdrawal left Defendant without representation and thus, Defendant did not have an opportunity to effectively oppose Plaintiff's motions to compel.

Second, Defendant acquired new counsel shortly after this Court May 7, 2026, order. The Court finds it appropriate to allow Defendant an opportunity to respond to Plaintiff's discovery requests. Indeed, the purpose of motions to compel discovery is to obtain compliance, not to punish. The Court believes it to be unnecessary to retain its May 7, 2026, ruling as it would only serve to punish Defendant.

Thus, Defendant's Motion for Reconsideration is GRANTED.

Defendant LINDA IKEDA is relieved from this Court's May 7, 2026, discovery order. The order is modified as follows:

(1) Defendant LINDA IKEDA shall serve verified responses, with objections to Request for Production, Set Five within twenty (20) days of this Order.

(2) Defendant LINDA IKEDA is ordered to appear for deposition by no later than 30 calendar days from the date of the Court's issuance of this Order. Defendant may assert objections to deposition categories and may move for a protective order if necessary.

(3) The Court's \$500 sanction is deferred. If Defendant LINDA IKEDA fails to provide discovery within twenty (20) days of this Order, the \$500 sanction shall be imposed.

Leave to File First Amended Complaint

Procedural Issues

An opposition must be served and filed at least nine (9) court days before the hearing. (CCP § 1005(b).) Here, Defendant filed her opposition on July 6, 2026, just three (3) court days before the July 9, 2026, hearing. Defendant's opposition is plainly late.

The Court considered Defendant's opposition since Plaintiff was able to file a reply. However, Defendant is admonished for submitting such a late opposition.

Further, the Court will allow Plaintiff to submit additional briefing if necessary.

Legal Standard

When a party moves to amend a pleading, “courts generally should permit amendment to the complaint at any stage of the proceedings, up to and including trial. [Citations.]” (*Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175.) In ruling on this type of motion, prejudice to another party is the main concern. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486.) The type of prejudice the court is to be concerned with should be something beyond simply having to cope with a potentially successful new legal theory of recovery that has been revealed during discovery. (*Ibid.*) Instead, the court should look for delays in the trial date, loss of critical evidence, extensive increase in the costs of preparation and other similar circumstances that create prejudice to another party. (*Melican, supra*, 151 Cal.App.4th at p. 176.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading. (Cal. Rules of Court, Rule 3.1324, subd. (a)(1).) A motion to amend a pleading must also be supported by a declaration which specifies the following: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324, subd. (b).)

Plaintiff’s proposed amendment adds James Hickey as Defendant in the place of Doe 1; expands alter-ego allegations against Defendant Linda Ikeda; and adds causes of action for alter ego, fraudulent concealment, and punitive damages.

First, the Court finds Plaintiff’s expanded alter-ego allegations are proper and will help resolve the issues raised in Defendant’s Motion for Judgment on the Pleadings. Defendant can challenge Plaintiff’s expanded allegations through demurrer.

Second, Defendant argues Plaintiff’s fraudulent concealment cause of action is time barred. “The statute of limitations of section 338, subdivision (d) provides a limitations period for fraud of three years. (§ 338, subd. (d).) This section effectively codifies the delayed discovery rule in connection with actions for fraud, providing that a cause of action for fraud ‘is not to be deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.’” (*Britton v. Girardi* (2015) 235 Cal.App.4th 721, 733–734.) “The ‘date the complaining party learns, or at least is put on notice, that a representation was false’ is the date the statute starts running.” (*Id.*)

Here, Plaintiff proposed First Amendment Complaint states that Defendant failed to disclose that JUMPSTART filed for dissolution on December 6, 2018. (Proposed First Amended Complaint “PFAC” ¶ 36(a).) Plaintiff also alleges Plaintiff discovered JUMPSTART’s dissolution in May 2021. (PFAC ¶ 38.) Plaintiff did not include a cause of action for fraudulent concealment until 2026, which is outside the statute of limitations period. Plaintiff argues in reply that Plaintiff did not discover concealed facts until 2026, but the PFAC expressly alleges otherwise.

Lastly, Defendant argues Plaintiff’s claims against James Hickey are improper.

Doe Amendment

CCP section 474 “allows a plaintiff in good faith to delay suing particular persons as named defendants until he has knowledge of sufficient facts to cause a reasonable person to believe liability is probable.” (*McOwen v. Grossman* (2007) 153 Cal.App.4th 937, 943.) “Section 474 provides a method for adding defendants after the statute of limitations has expired, but this procedure is available only when the plaintiff is actually ignorant of the facts establishing a cause of action against the party to be substituted for a Doe defendant.” (*McClatchy v. Coblenz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 371-72.) “Ignorance of the facts giving rise to a cause of action is the ignorance required by section 474, and the pivotal question is, ‘did plaintiff know facts?’ not ‘did plaintiff know or believe that [he] had a cause of action based on those facts?’” (*Id.* at 372 (quoting *General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 594).) “Although it is true that a plaintiff’s ignorance of the defendant’s name must be genuine (in good faith) and not feigned [citations] and that a plaintiff need not be aware of each and every detail concerning a person’s involvement before the plaintiff loses his ignorance [citations], it is equally true that the plaintiff does not relinquish [his] rights under section 474 simply because [he] has a suspicion of wrongdoing arising from one or more facts [he] does know.” (*Id.* (quoting *General Motors, supra*, 48 Cal.App.4th at 594-95).) “The fact that the plaintiff had the means to obtain knowledge is irrelevant.” (*General Motors, supra*, 48

Cal.App.4th at 594.)

Here, Plaintiff argues Plaintiff was ignorant of James Hickey's potential liability until the Ruiz settlement and his personal cashier's check were produced in 2025 and 2026. However, Plaintiff does not explain how James Hickey's involvement in the Ruiz settlement makes him potentially liable in this case. Indeed, Mr. Hickey's is involved in the parties' contract, nor does Mr. Hickey's seem to be involved in Jumpstart Bodyfuel, LLC.

Conclusion

Therefore, considering the arguments of Counsel, the Court rules as follows:

Plaintiff's Motion for Leave to Amend is GRANTED in part:

- Plaintiff's expanded alter ego allegations may remain in the First Amended Complaint.
- Plaintiff's Alter Ego and Punitive Damages claims may remain in the First Amended Complaint.
- Plaintiff may not add a cause of action for Fraudulent Concealment.
- James Hickey shall not be substituted for Doe 1.

Plaintiff shall serve and file a proper First Amended Complaint within five (5) court days of this Court's ruling.

Given the above ruling, Defendant's Motion for Judgment on the Pleadings is MOOT.